



EVERY LAW IS ORDAINED TO THE COMMON GOOD

THOMAS AQUINAS (c. 1225–1274)

IN CONTEXT

FOCUS

Natural law

BEFORE

54–51 BCE Cicero's *De Republica* discusses ideas of natural law and natural right.

388–395 CE St. Augustine tries to reconcile Christian teaching and natural law in *De libero arbitrio* (*On Free Will*).

c. 1140–1150 Gratian's *Decretum* describes natural law as “the law common to all nations.”

AFTER

1323 Thomas Aquinas is canonized by Pope John XXII.

1689 English philosopher John Locke's *Two Treatises on Government* argues that natural law existed in our original state of nature before the rise of governments.

1948 The Universal Declaration of Human Rights sets out fundamental rights that are common to all nations.

People have the **faculty of reason** and seek to **live in a virtuous way**.

People discover natural laws **embedded in nature** and **through divine commands**.

Immutable and universal, **natural law** enables people to live in a **good and moral way**.

Natural law takes precedence over **man-made laws**, which are **subject to change** and **can be unjust**.

As legal theory developed from antiquity onward, a series of philosophical questions particularly troubled scholars. Central among these were three conundrums: from where did law arise, could laws be applied universally, and were there moral grounds on which laws could be disobeyed? Endeavoring to solve these problems, the theory of natural law held that there was an overarching law whose principles were embedded in nature itself—and, according to philosopher and theologian Thomas Aquinas, were dictated by divine command. The

idea maintained that to be just, human laws—those of a nation-state, for example—must conform to the principles of natural law.

Reason and virtue

Natural law theory originated with Greek philosophers such as Aristotle in the 4th century BCE, who in his *Politics* described law as reason and part of mankind's rational attempt to organize society well. The Roman statesman and lawyer Cicero in the 1st century BCE argued that the best way to achieve happiness was through living a life of virtue and that natural law, framed in